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Hearings and Summary Review Overview

Hearings and Summary Reviews are conducted by the Executive Hearing Office (EHO). Customers have strict deadlines to file their requests, so any requests received by MVD need to be forwarded to the EHO immediately upon receipt.

A customer who has requested a hearing or summary review is referred to as a 'Petitioner' at the EHO.



Any questions pertaining to a hearing request (e.g., date/time of hearing, eligibility for a hearing, etc.), the petitioner may contact the EHO by email at hearingoffice@azdot.gov or by calling (602) 712-7737.

MVD can answer questions about how the petitioner may reinstate their license after the hearing, as applicable.

Which Actions are Eligible for Review at the EHO?

The EHO reviews a wide range of MVD actions. Petitioners can review the notice sent by MVD (Withdrawal Notice, Corrective Action Notice, etc.) to determine if there is a hearing right for a specific action. All actions have a time limit to request a hearing, which in most cases is 15 or 30 days from the date of the notice.

The EHO also reviews requests for the removal of restitution liens and the imposition of penalties against lienholders who have not timely released a lien once it has been satisfied.

The EHO does NOT remove financial liens, issue titles, or remove DOR, DES, or TTEAP liens. The EHO does not remove or waive nonpayment of judgment holds.

Forms for Hearing Requests

- Admin Per Se/Implied Consent Affidavit (back portion), form #40-5807 (provided by law enforcement)
 - To seek a hearing on an Admin Per Se or an Implied Consent
- [Hearing Request, form #40-5008](#)
 - General hearing request for administrative DUI suspensions, or other actions eligible for a hearing
- [Lienholder Complaint Report, form #96-0330](#)

- To seek a hearing to impose penalties on a lienholder who has not timely released the lien after it has been satisfied
- The EHO will NOT remove the underlying lien
- [Restitution Lien Hearing Request, form #40-5009](#)
- To seek removal of a restitution lien placed due to a criminal restitution order



The EHO cannot remove DOR, DES, TTEAP, or other liens.

Accepting a Hearing Request



The CSR does not need to determine if a hearing or summary review request is timely (within filing deadlines). All request are reviewed by the EHO and a judge will determine if the request was filed in time to get a hearing or summary review.

Petitioners will be notified by the EHO if their matter will be set for a hearing, typically within 60 days of the hearing request.

When a petitioner is ready to submit a completed hearing or summary review request form, follow the procedures listed below. You can also accept an Admin Per Se/Implied Consent Affidavit with a completed hearing request/summary review request section.

When the petitioner does not have a completed request form, provide one of the appropriate forms listed above to complete. The petitioner can complete the form on site or can take the form to submit directly to the EHO, if they wish.

When taking a hearing request at an office, the CSR will write the following on the request:

- Date and time received on the request
- CSR's RACF
- Office number

Submitting Hearing Request to EHO



The CSR will scan the hearing or summary review request form, along with any additional documents the petitioner wants to submit with their hearing request, to the EHO.

Do NOT upload the request to the customer's documents in MAX, you MUST scan and email to the EHO at hearingoffice@azdot.gov.

- Scan the request and email it to the EHO at hearingoffice@azdot.gov
- Photo copy the request to keep with data processing
- Give originals back to the petitioner



The CSR will not mail or interoffice the original request to the EHO, as the petitioner will retain the original request for their records.

A petitioner or petitioner's attorney may also file their request directly with the EHO by:

- **Email:** hearingoffice@azdot.gov
- **Mail to:** Executive Hearing Office, Arizona Department of Transportation, Mail Drop 507M, P.O. Box 2100, Phoenix, AZ 85001-2100
- **In person at the EHO:** 3838 N. Central Ave. 3rd Floor, Phoenix, AZ 85012

▶ Example of Hearing Request

Policies

[3.8.10 Administrative Hearing Request](#)

[8.4.3 Operation of Law Liens](#)

[8.4.4 Restitution Liens](#)

HELPFUL LINKS

- » [MVD / DMV Public Website](#) »
- » [Customer Portal](#) »

Last Updated: May 08, 2026